

**Tentative Rulings**

August 14, 2026

Department S-17

Judge Joseph Ortiz

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Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, via CourtCall (888-882-6878 or [www.courtcall.com](http://www.courtcall.com)), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

**ATTENTION:** Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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6. *Martinez v. Toyota Motor Sales, U.S.A., Inc., et al*, Case No. CIVSB2508110  
Defendant's Motion to Compel Further Responses to Requests for Admissions, Set One  
Defendant's Motion to Compel Further Responses to Requests for Production, Set One  
Defendant's Motion to Compel Further Responses to Form Interrogatories, Set One  
Defendant's Motion to Compel Further Responses to Special Interrogatories, Set One  
8/14/26, 9:00 a.m., Dept. S-17

### ***Tentative Rulings***

The Court would **DENY** the three motions on the basis of timeliness. The Court would also order Defendant Toyota to pay sanctions in the amount of \$1,250 within thirty (30) days of this ruling.

### ***Case Summary***

This is a lemon law case. Plaintiff contends that she purchased the subject vehicle and that it was manufactured, distributed, and warranted by Defendant. Despite being covered by warranties, she alleges that Defendant failed to repair the vehicle in a reasonable number of attempts and failed to provide a replacement or restitution. As such, in December of 2024, he filed suit for (1) violation of the Song-Beverly Consumer Warranty Act and (2) violation of the Magnuson Moss Warranty Act.

Relevant here, Defendant Toyota served its first set of written discovery on Plaintiff on November 20, 2025, which included the at-issue Requests for Admission, Set One (RFA1); Request for Production, Set One (RFP1); Form Interrogatories, Set One (FROG1); and Special Interrogatories, Set One (SROG1). (See, e.g., Chong Decl., ¶3 & Exh. A.)<sup>1</sup> After two extensions, Plaintiff served verified responses on January 9, 2026. (Chong Decl., ¶14 & Exh. B.) Defendant sent a meet-and-confer letter on February 17, 2026, and filed these motions shortly thereafter after not receiving a response. Notably, however, the parties stipulated to continue the original hearing date in order to further try and resolve the motions. (See Stipulation and Order, signed June 29, 2026.)

### ***Analysis***

*The Meet-and-Confer Process* – As a preliminary matter, Defense Counsel merely sent a meet-and-confer letter and then almost immediately filed the motions when there was not a response. (Chong Decl., ¶¶5-6 & Exh. C.) That process is, on its face, not code-compliant with the in-person, telephonic, or by video meet-and-confer requirement. However, the Court notes that the motions were continued by stipulation, as the parties were attempting to resolve them. (See Stipulated Order signed June 29, 2026.) Thus, the Court notes there were further discussions and would infer that the meet-and-confer process was satisfied.

*Motion Timeliness* – At primary issue is the timeliness of the motions. Plaintiff e-served her verified responses on January 9, 2026, which would provide a deadline for any motion to compel further responses of February 25, 2026. Although Defendant Toyota e-served its four motions on the deadline date, those motions failed to include the *date and time* of the hearing. Because of that, Plaintiff opposes all four motions arguing they are untimely. The Court agrees.

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<sup>1</sup> The motions submit virtually identical declarations in support thereof. Thus, the Court, will cite uniformly, unless a notation is necessary to note a distinction.

The statutes governing the motions each provide that notice of the motion *must be given* within 45 days of the service of the verified responses. (Code Civ. Proc., § 2030.300(c), 2031.310(c), & 2033.290(c).) Thus, the inquiry turns to whether the initial notice was sufficient:

A motion is made upon due service and filing of the notice of motion with all required information and supporting papers. (Code Civ. Proc., §§ 1005(b), 1005.5 & 1010; also *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 137-138.) The notice must state “when, and the grounds upon which” the motion will be made. (Code Civ. Proc., § 1010 [emphasis]; *Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538, citing *Li v. Majestic Industry Hills, LLC* (2009) 177 Cal.App.4th 585, 591.)

This requirement is echoed in the rules as well: Rule 3.1110(b)(1) of the Rules of Court states that every notice shall on the first page below the case number state that “date, time, and location, if ascertainable, of any scheduling hearing . . .” (Emphasis.) Local Rule 520 provides that no motion shall be noticed for hearing without the party reserving a hearing date with the court clerk. Thus, the date and time are central to the notice requirement.

Under the predicate legal standard, the failure to provide the hearing date and time within the Notice of Motion renders it defective. Here, the defect was not “cured” until February 27, 2026. (See Amended Notices, filed Feb. 27, 2026.)<sup>2</sup> Thus, the motions are untimely.

Importantly, the statutory 45-day deadline is *mandatory* and *jurisdictional* in the sense that the court is without authority to rule upon the motion to compel, except to deny it. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410.) Thus, the Court is constrained and must deny the motions.

Sanctions – As the prevailing party, Plaintiff is entitled to sanctions. The Court would find that a reasonable rate or a partner on such cases in the geographic region would be \$500 per hour rather than the requested rate. Further, the oppositions are virtually identical. Thus, six hours for all four motions is overstated. The Court would conclude an appropriate reasonable sanction for all four motions would be \$1,250 [\$500 x 2.5 hours].)

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<sup>2</sup> The Court notes the two additional days for response when service of a document is made by electronic mail, as was done here. (See Code Civil Procedure, § 1010.6(a)(3)(B).)